

estate *ex parte maternâ* will, by the merger¹ of the equitable in the legal, become seised both at law and at equity, *ex parte paternâ*, and the subsequent devolution will be regulated accordingly.

How far the equitable merges in the legal estate.—But this rule holds only where the legal and equitable estates are co-extensive and commensurate; for if a person be seised of the legal estate in *fee*, and have only a *partial equitable* interest, to merge the one in the other might occasion an injurious disturbance of rights. Thus before the Fines and Recoveries Act (*e*), if lands had been conveyed unto and to the use of A. and his heirs, in trust for B. in tail with remainder in trust for A. in fee, had the equitable remainder limited to A. been converted into a legal estate, it would not have been barrable by B.'s equitable recovery (*f*).

*** In what sense mortgagee in fee is trustee for himself** [*15] **and his executors.**—In the case of a mortgagee in fee it [has been] said [that] a man and his *heirs* are trustees for himself and his *executors* (*a*). But the meaning was, that, until a release or foreclosure of the equity of redemption, the interest of the mortgagee was of the nature of personality, and passed on his death to his personal representative; the *heir*, therefore, took the estate upon trust for the *executor* (*b*). A release or foreclosure, unless it happen in the lifetime of the mortgagee, comes too late after his decease to alter the character of the property, for, *as the tree falls, so it must lie* (*c*) (1).

(*e*) 3 & 4 W. 4. c. 74.

(*f*) Philips v. Brydges, 3 Ves. 120: see the judgment, pp. 125–127; Robinson v. Cuming, Rep. t. Talb. 164; S. C. 1 Atk. 473; and see Boteler v. Allington, 1 B. C. C. 72; Merest v. James, 6 Mad. 118; Habbergham v. Vincent, 2 Ves. jun. 204; Buchanan v. Harrison, 1 Johns. & Hem. 662.

(*a*) Kendal v. Mickfield, Barn. 50, per Lord Hardwicke.

[(*b*) Now, by the Conveyancing and Law of Property Act, 1881, s. 30, the estate of the mortgagee devolves upon the legal personal representative to the exclusion of the heir or devisee.]

• (*c*) Canning v. Hicks, 2 Ch. Ca.

(1) But if the heir foreclosed or obtained a release of the equity of redemption, it was said he might keep the estate, and pay the executor the debt only. Clerkson v. Bowyer, 2 Vern. 67, per Cur. Sed quære.

¹ Bolles v. State Trust Co. 27 N. J. Eq. 308; Badgett v. Keating, 31 Ark. 400; Truebody v. Jacobson, 2 Cal. 82; Lockwood v. Sturtevant, 6 Conn. 373;